

ESSENCE OF INDIAN CONSTITUTION**Course Code : 313002****Programme Name/s**

**: Architecture Assistantship/ Automobile Engineering./ Artificial Intelligence/ Agricultural Engineering/
Artificial Intelligence and Machine Learning/ Automation and Robotics/ Architecture/ Cloud Computing and Big Data/
Civil Engineering/ Chemical Engineering/ Computer Technology/ Computer Engineering/
Civil & Rural Engineering/ Construction Technology/ Computer Science & Engineering/
Fashion & Clothing Technology/
Dress Designing & Garment Manufacturing/ Digital Electronics/ Data Sciences/ Electrical Engineering/
Electronics & Tele-communication Engg./ Electrical and Electronics Engineering/ Electrical Power System/ Electronics & Communication Engg./
Electronics Engineering/ Food Technology/ Computer Hardware & Maintenance/ Hotel Management & Catering Technology/
Instrumentation & Control/ Industrial Electronics/ Information Technology/ Computer Science & Information Technology/
Instrumentation/ Interior Design & Decoration/ Interior Design/ Civil & Environmental Engineering/
Mechanical Engineering/ Mechatronics/ Medical Laboratory Technology/ Medical Electronics/
Production Engineering/ Printing Technology/ Polymer Technology/ Computer Science/ Textile Technology/ Electronics & Computer Engg./ Travel and Tourism/ Textile Manufactures/**

Programme Code

: AA/ AE/ AI/ AL/ AN/ AO/ AT/ BD/ CE/ CH/ CM/ CO/ CR/ CS/ CW/ DC/ DD/ DE/ DS/ EE/ EJ/ EK/ EP/ ET/ EX/ FC/ HA/ HM/ IC/ IE/ IF/ IH/ IS/ IX/ IZ/ LE/ ME/ MK/ ML/ MU/ PG/ PN/ PO/ SE/ TC/ TE/ TR/ TX

Semester**: Third****MSBTE Approval Dt. 02/07/2024****Semester - 3, K Scheme**

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Course Code : 313002**Course Title : ESSENCE OF INDIAN CONSTITUTION****Course Code : 313002****I. RATIONALE**

This course will focus on the basic structure and operative dimensions of Indian Constitution. It will explore various aspects of the Indian political and legal system from a historical perspective highlighting the various events that led to the making of the Indian Constitution. The Constitution of India is the supreme law of India. The document lays down the framework demarcating the fundamental political code, structure, procedures, powers, and sets out fundamental rights, directive principles, and the duties of citizens. The course on constitution of India highlights key features of Indian Constitution that makes the students a responsible citizen. In this online course, we shall make an effort to understand the history of our constitution, the Constituent Assembly, the drafting of the constitution, the preamble of the constitution that defines the destination that we want to reach through our constitution, the fundamental right constitution guarantees through the great rights revolution, the relationship between fundamental rights and fundamental duties, the futuristic goals of the constitution as incorporated in directive principles and the relationship between fundamental rights and directive principles.

II. INDUSTRY / EMPLOYER EXPECTED OUTCOME

The aim of this course is to help the student to attain the following industry /employer expected outcome – Abide by the Constitution in their personal and professional life.

III. COURSE LEVEL LEARNING OUTCOMES (COS)

Students will be able to achieve & demonstrate the following COs on completion of course based learning

- CO1 - List salient features and characteristics of the constitution of India.
- CO2 - Follow fundamental rights and duties as responsible citizen of the country.
- CO3 - Analyze major constitutional amendments in the constitution.
- CO4 - Follow procedure to cast vote using voter-id.

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Course Code	Course Title	Abbr	Course Category/s	Learning Scheme					Credits	Assessment Scheme											
				Actual Contact Hrs./Week			SLH	NLH		Paper Duration	Theory				Based on LL & TL				Based on SL		Total Marks
															Practical						
				CL	TL	LL	FA-TH	SA-TH			Total		FA-PR		SA-PR		SLA				
Max	Max	Max	Min	Max	Min	Max	Min	Max	Min												
313002	ESSENCE OF INDIAN CONSTITUTION	EIC	VEC	1	-	-	1	2	1	-	-	-	-	-	-	-	-	-	50	20	50

Total IKS Hrs for Sem. : 0 Hrs

Abbreviations: CL- Classroom Learning , TL- Tutorial Learning, LL-Laboratory Learning, SLH-Self Learning Hours, NLH-Notional Learning Hours, FA - Formative Assessment, SA -Summative assessment, IKS - Indian Knowledge System, SLA - Self Learning Assessment

Legends: @ Internal Assessment, # External Assessment, *# On Line Examination , @\$ Internal Online Examination
Note :

1. FA-TH represents average of two class tests of 30 marks each conducted during the semester.
2. If candidate is not securing minimum passing marks in FA-PR of any course then the candidate shall be declared as "Detained" in that semester.
3. If candidate is not securing minimum passing marks in SLA of any course then the candidate shall be declared as fail and will have to repeat and resubmit SLA work.
4. Notional Learning hours for the semester are (CL+LL+TL+SL)hrs.* 15 Weeks
5. 1 credit is equivalent to 30 Notional hrs.
6. * Self learning hours shall not be reflected in the Time Table.
7. * Self learning includes micro project / assignment / other activities.

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Sr.No	Theory Learning Outcomes (TLO's) aligned to CO's.	Learning content mapped with Theory Learning Outcomes (TLO's) and CO's.	Suggested Learning Pedagogies.
1	TLO 1.1 Explain the meaning of preamble of the constitution. TLO 1.2 Explain the doctrine of basic structure of the constitution. TLO 1.3 List the salient features of constitution. TLO 1.4 List the characteristics of constitution.	Unit - I Constitution and Preamble 1.1 Meaning of the constitution of India. 1.2 Historical perspectives of the Constitution of India. 1.3 Salient features and characteristics of the Constitution of India. 1.4 Preamble of the Constitution of India.	Presentations Blogs Hand-outs Modules Flipped classrooms Case studies
2	TLO 2.1 Enlist the fundamental rights. TLO 2.2 . Identify fundamental duties in general and in particular with engineering field. TLO 2.3 Identify situations where directive principles prevail over fundamental rights.	Unit - II Fundamental Rights and Directive Principles 2.1 Fundamental Rights under Part-III. 2.2 Fundamental duties and their significance under part-IV-A. 2.3 Relevance of Directive Principles of State Policy under part-IV A.	Presentations Blogs Hand-outs Modules Case Study Flipped Classroom

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Sr.No	Theory Learning Outcomes (TLO's) aligned to CO's.	Learning content mapped with Theory Learning Outcomes (TLO's) and CO's.	Suggested Learning Pedagogies.
3	TLO 3.1 Enlist the constitutional amendments. TLO 3.2 Elaborate the elements of Centre-State Relationship TLO 3.3 Analyze the purposes of various amendments.	Unit - III Governance and Amendments 3.1 3.1 Amendment procedure of the Constitution and their types - simple and special procedures. 3.2 The Principle of Federalism and its contemporary significance along with special committees that were setup. 3.3 Major Constitutional Amendment procedure - 1st, 7th, 42nd, 44th, 73rd & 74th, 76th, 86th, 52nd & 91st, 102nd	Cases of Federal disputes with relevant Supreme court powers and Judgements Presentations Blogs Hand-outs Problem based learning

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Sr.No	Theory Learning Outcomes (TLO's) aligned to CO's.	Learning content mapped with Theory Learning Outcomes (TLO's) and CO's.	Suggested Learning Pedagogies.
4	TLO 4.1 Explain the importance of electoral rights. TLO 4.2 Write the step by step procedure for process of registration TLO 4.3 Explain the significance of Ethical electoral participation TLO 4.4 Explain the steps to motivation and facilitation for electoral participation TLO 4.5 Enlist the features of the voter's guide TLO 4.6 Explain the role of empowered voter TLO 4.7 Write the steps of voting procedure TLO 4.8 Write steps to create voter awareness TLO 4.9 Fill the online voter registration form TLO TLO 4.10 Follow procedure to cast vote using voter-id.	Unit - IV Electoral Literacy and Voter's Education 4.1 Electoral rights , Electoral process of registration 4.2 Ethical electoral participation 4.3 Motivation and facilitation for electoral participation 4.4 Voter's guide 4.5 Prospective empowered voter 4.6 Voting procedure 4.7 Voter awareness 4.8 Voter online registration https://www.ceodelhi.gov.in/ELCdetails.aspx	Presentations Hand-outs Modules Blogs Problem based Learning

VI. LABORATORY LEARNING OUTCOME AND ALIGNED PRACTICAL / TUTORIAL EXPERIENCES : NOT**MSBTE Approval Dt. 02/07/2024****Semester - 3, K Scheme**

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APPLICABLE.**VII. SUGGESTED MICRO PROJECT / ASSIGNMENT/ ACTIVITIES FOR SPECIFIC LEARNING / SKILLS DEVELOPMENT (SELF LEARNING)****Assignment**

- Outline the procedure to submit application for Voter-id
- Assignments are to be provided by the course teacher in line with the targeted COs.

A1. Prepare an essay on Constitution of India .

A2 Prepare a comparative chart of Unique features of Indian Constitution of India and Constitution of USA

- Assignments are to be provided by the course teacher in line with the targeted COs. A1. Prepare an essay on Constitution of India . A2 Prepare a comparative chart of Unique features of Indian Constitution of India and Constitution of USA A3.

Self-learning topics: Parts of the constitution and a brief discussion of each part Right to education and girl enrollment in schools. GER of Girls and Boys. Right to equality. Social Democracy. Women Representation in Parliament and State Assemblies. LGBTQIA+

Micro project

- 1. Organize a workshop-cum discussions for spreading awareness regarding Fundamental Rights of the citizen of the country
- 2. Prepare elaborations where directive principle of State policy has prevailed over Fundamental rights with relevant Supreme Court Judgements.
- 3. Organize a debate on 42nd, 97th and 103rd Constitutional Amendment Acts of Constitution of India.

Seminar

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- 1 Differences in the ideals of Social democracy and Political democracy.
- 2 Democracy and Women's Political Participation in India.
- 3 Khap Panchayat - an unconstitutional institution infringing upon Constitutional ethos.
- 4 Situations where directive principles prevail over fundamental rights.

Group discussions on current print articles.

- - Art 356 and its working in Post-Independent India.
 - Women's Reservation in Panchayat leading to Pati Panchayats - Problems and Solutions.
 - Adoption of Article 365 in India.
 - Need of Amendments in the constitution.
 - Is India moving towards a Unitary State Model ?

Activity

- Arrange Mock Parliament debates.
Prepare collage/posters on current constitutional issues.
 - i. National (Art 352) & State Emergencies (Art 356) declared in India.
 - ii. Seven fundamental rights.
 - iii. Land Reforms and its effectiveness - Case study of West-Bengal and Kerala.

Cases: Suggestive cases for usage in teaching:

- A.K. Gopalan Case (1950) :SC contented that there was no violation of Fundamental Rights enshrined in Articles 13, 19, 21 and 22 under the provisions of the Preventive Detention Act, if the detention was as per the procedure established by law. Here, the SC took a narrow view of Article 21.
- Shankari Prasad Case (1951) : This case dealt with the amendability of Fundamental Rights (the First Amendment's validity was challenged). The SC contended that the Parliament's power to amend under Article 368 also includes the power to amend

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the Fundamental Rights guaranteed in Part III of the Constitution.

Minerva Mills case (1980) : This case again strengthens the Basic Structure doctrine. The judgement struck down 2 changes made to the Constitution by the 42nd Amendment Act 1976, declaring them to violate the basic structure. The judgement makes it clear that the Constitution, and not the Parliament is supreme.

Maneka Gandhi case (1978) : A main issue in this case was whether the right to go abroad is a part of the Right to Personal Liberty under Article 21. The SC held that it is included in the Right to Personal Liberty. The SC also ruled that the mere existence of an enabling law was not enough to restrain personal liberty. Such a law must also be “just, fair and reasonable.”

Other cases:

1. Kesavananda Bharati Case (1973) : In this case the Hon. SC laid down a new doctrine of the ‘basic structure’ (or ‘basic features’) of the Constitution. It ruled that the constituent power of Parliament under Article 368 does not enable it to alter the ‘basic structure’ of the Constitution. This means that the Parliament cannot abridge or take away a Fundamental Right that forms a part of the ‘basic structure’ of the Constitution.

2. Mathura Rape Case (1979) : A tribal woman Mathura (aged 14 to 16 years) was raped in Police Custody. The case raised the questions on the idea of 'Modesty of Woman' and here it was a tribal woman who succumbs to multiple patriarchies. Custodial rape was made an offence and was culpable with the detainment of 7 years or more under Section 376 of Indian Penal Code. The weight of proofing the allegations moved from the victim to the offender, once sexual intercourse is established. The publication of the victim's identity was banned and it was also held that rape trials should be conducted under the cameras.

3. Puttsamy vs Union of India (2017) : In this landmark case which was finally pronounced by a 9-judge bench of the Supreme Court on 24th August 2017, upholding the fundamental right to privacy emanating from Article 21. The court stated that Right to Privacy is an inherent and integral part of Part III of the Constitution that guarantees fundamental rights. The conflict in this area mainly arises between an individual's right to privacy and the legitimate aim of the government to implement its policies and a balance needs to be maintained while doing the same.

4. Navtej Singh Johar & Ors. v. Union of India (2018) : Hon. SC Decriminalised all consensual sex among adults, including homosexual sex by scrapping down section 377 of the Indian penal code (IPC). The court ruled that LGBTQ community are equal citizens and underlined that there cannot be discrimination in law based on sexual orientation and gender.

5. Anuradha Bhasin Judgement (2020) : The Supreme Court of India ruled that an indefinite suspension of internet services would be illegal under Indian law and that orders for internet shutdown must satisfy the tests of necessity and proportionality.

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The Court reiterated that freedom of expression online enjoyed Constitutional protection, but could be restricted in the name of national security. The Court held that though the Government was empowered to impose a complete internet shutdown, any order(s) imposing such restrictions had to be made public and was subject to judicial review.

Note :

- Above is just a suggestive list of microprojects and assignments; faculty must prepare their own bank of microprojects, assignments, and activities in a similar way.
- The faculty must allocate judicious mix of tasks, considering the weaknesses and / strengths of the student in acquiring the desired skills.
- If a microproject is assigned, it is expected to be completed as a group activity.
- SLA marks shall be awarded as per the continuous assessment record.
- For courses with no SLA component the list of suggestive microprojects / assignments/ activities are optional, faculty may encourage students to perform these tasks for enhanced learning experiences.
- If the course does not have associated SLA component, above suggestive listings is applicable to Tutorials and maybe considered for FA-PR evaluations.

VIII. LABORATORY EQUIPMENT / INSTRUMENTS / TOOLS / SOFTWARE REQUIRED : NOT APPLICABLE**IX. SUGGESTED WEIGHTAGE TO LEARNING EFFORTS & ASSESSMENT PURPOSE (Specification Table)**

Sr.No	Unit	Unit Title	Aligned COs	Learning Hours	R-Level	U-Level	A-Level	Total Marks
1	I	Constitution and Preamble	CO1	4	0	0	0	0
2	II	Fundamental Rights and Directive Principles	CO2	4	0	0	0	0
3	III	Governance and Amendments	CO3	4	0	0	0	0

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Sr.No	Unit	Unit Title	Aligned COs	Learning Hours	R-Level	U-Level	A-Level	Total Marks
4	IV	Electoral Literacy and Voter's Education	CO4	3	0	0	0	0
Grand Total				15	0	0	0	0

X. ASSESSMENT METHODOLOGIES/TOOLS**Formative assessment (Assessment for Learning)**

- Assignment, Self-learning and Terms work Seminar/Presentation

Summative Assessment (Assessment of Learning)**XI. SUGGESTED COS - POS MATRIX FORM**

Course Outcomes (COs)	Programme Outcomes (POs)							Programme Specific Outcomes* (PSOs)		
	PO-1 Basic and Discipline Specific Knowledge	PO-2 Problem Analysis	PO-3 Design/ Development of Solutions	PO-4 Engineering Tools	PO-5 Engineering Practices for Society, Sustainability and Environment	PO-6 Project Management	PO-7 Life Long Learning	PSO-1	PSO-2	PSO-3
CO1	1	-	-	-	2	-	-			

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CO2	1	-	-	-	2	-	-			
CO3	1	2	-	-	2	-	1			
CO4	-	-	-	1	-	-	-			
Legends :- High:03, Medium:02,Low:01, No Mapping: - *PSOs are to be formulated at institute level										

XII. SUGGESTED LEARNING MATERIALS / BOOKS

Sr.No	Author	Title	Publisher with ISBN Number
1	P.M.Bakshi	The Constitution of India	Universal Law Publishing, New Delhi 15th edition, 2018, ISBN: 9386515105 (Check the new edition)
2	D.D.Basu	Introduction to Indian Constitution	Lexis Nexis Publisher, New Delhi, 2015, ISBN:935143446X
3	B. K. Sharma	Introduction to Constitution of India	PHI, New Delhi, 6th edition, 2011, ISBN:8120344197

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Sr.No	Author	Title	Publisher with ISBN Number
4	MORE READS :	Oxford Short Introductions - The Indian Constitution by Madhav Khosla. The Indian Constitution: Cornerstone of a Nation by Granville Austin. Working a Democratic Constitution: A History by Garnville Austin Founding Mothers of the Indian Republic: Gender Politics of the Framing of the Constitution by Achyut Chetan. Our Parliament by Subhash C. Kashyap. Our Political System by Subhash C. Kashyap. Our Constitution by Subhash C. Kashyap. Indian Constitutional Law by Rumi Pal.	Extra Read
5	B.L. Fadia	The Constitution of India	Sahitya Bhawan, Agra, 2017, ISBN:8193413768

XIII . LEARNING WEBSITES & PORTALS

Sr.No	Link / Portal	Description
1	http://www.legislative.gov.in/constitution-of-india	Constitution overview
2	https://en.wikipedia.org/wiki/Constitution_of_India	Parts of constitution
3	https://www.india.gov.in/my-government/constitution-india	Constitution overview
4	https://www.toppr.com/guides/civics/the-indian-constitution/the-constitution-of-india/	Fundamental rights and duties
5	https://main.sci.gov.in/constitution	Directive principles
6	https://legalaffairs.gov.in/sites/default/files/chapter%203.pdf	Parts of constitution

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Sr.No	Link / Portal	Description
7	https://www.concourt.am/armenian/legal_resources/world_constitutions/constit/india/india-e.htm	Parts of constitution
8	https://constitutionnet.org/vl/item/basic-structure-indian-constitution	Parts of constitution

Note :

- Teachers are requested to check the creative common license status/financial implications of the suggested online educational resources before use by the students

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